

## 24STCV23774 24STCV23774

County: los-angeles

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Department: 408

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Case Number: 24STCV23774 Hearing Date: September 11, 2026 Dept: 408

Defendants City of

Torrance and Courtney Vo's Motion for Summary Judgment is GRANTED.

I.

### BACKGROUND

On

September 13, 2024, Plaintiff Marcus Robert Menzies ("Plaintiff") filed a complaint against Defendants City of Torrance ("City") and Courtney Vo ("Vo", collectively "Defendants") alleging causes of action for:

1.

Discrimination

Based on Physical Disability (Govt. Code, §12940(a));

2.

Harassment Based

on Physical Disability (Govt. Code, §12940(j));

3.

Failure to

Prevent Discrimination (Govt. Code, §12940(k));

4.

Retaliation

(Govt. Code §12940(h));

5.

Failure to  
Accommodate Physical Disability (Govt. Code §12940 (m)); and

6.

Failure to Engage  
in a Good Faith Interactive Process (Govt. Code §12940 (n)).

On

January 21, 2025, the court overruled Defendants' Demurrer as to the second  
cause of action alleged in Plaintiff's complaint.

On

February 10, 2025, Defendants filed an answer to Plaintiff's complaint.

On

May 14, 2026, Defendants filed this Motion for Summary Adjudication, or in the  
alternative, Summary Adjudication. On July 21, 2026, Plaintiff filed an  
opposition. On July 30, 2026, Defendants filed a reply.

II.

LEGAL

STANDARD

"A

party may move for summary judgment in an action or proceeding if it is  
contended that the action has no merit or that there is no defense to the  
action or proceeding. The motion may be made at any time after 60 days have  
elapsed since the general appearance in the action or proceeding of each party  
against whom the motion is directed or at any earlier time after the general  
appearance that the court, with or without notice and upon good cause shown,  
may direct." (Code Civ. Proc., § 437c, subd. (1)(a).)

"[T]he

party moving for summary judgment bears the burden of persuasion that there is  
no triable issue of fact and that he is entitled to judgment as a matter of  
law. That is because of the general principle that a party who seeks a court's  
action in his favor bears the burden of persuasion thereon. There is a triable  
issue of material fact if, and only if, the evidence would allow a reasonable  
trier of fact to find the underlying fact in favor of the party opposing the  
motion in accordance with the applicable standard of proof." (Aguilar v.

Atl. Richfield Co. (2001) 25 Cal.4th 826, 850 [citation omitted].)

“[T]he

party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” (Aguilar, supra, at 850; Smith

v. Wells Fargo Bank, N.A. (2005) 135 Cal.App.4th 1463, 1474, [applying the summary judgment standards in Aguilar to motions for summary adjudication].)

“On

a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial.” (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 839 [citation omitted].)

“The

trial court may not weigh the evidence in the manner of a fact finder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court's evaluation of credibility. (Binder, supra, at 840, citations omitted; see also Weiss v. People ex rel. Dep't of Transp. (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party”].)

III.

## DISCUSSION

Defendants

seek summary judgment on the six causes of action alleged in Plaintiff's complaint. In the alternative, Defendants move for summary adjudication of the following issues:

A.

First

Cause of Action for Disability Discrimination

[Issue No. 1] The first cause of action for disability discrimination in violation of the Fair Employment and Housing Act ("FEHA") fails as a matter of law as Plaintiff cannot establish a prima facie claim for disability discrimination because there is no evidence of a discriminatory motive;

[Issue No. 2] The first cause of action for disability discrimination in violation of FEHA fails as a matter of law as the City did not take any adverse employment actions against Plaintiff;

[Issue No. 3] The first cause of action for disability discrimination in violation of FEHA fails as a matter of law as the City had legitimate business reasons that were not pretextual for Plaintiff's alleged adverse employment actions;

B.

Second

Cause of Action for Disability Harassment

[Issue No. 4]

The second cause of action for harassment against the City based on physical disability in violation of FEHA fails as a matter of law as it is barred by the applicable three-year statute of limitations;

[Issue No. 5]

The second cause of action for harassment against Vo based on physical disability in violation of FEHA fails as a matter of law as it is barred by the applicable three-year statute of limitations;

[Issue No. 6]

The second cause of action for harassment against the City based on physical disability in violation of FEHA fails as a matter of law as Plaintiff cannot establish that he was subjected to

harassing conduct because of his disability that was severe or pervasive;

[Issue No. 7]

The second cause of action for harassment against Vo based on physical disability in violation of FEHA fails as a matter of law as Plaintiff cannot establish that he was subjected to harassing conduct because of his disability that was severe or pervasive;

[Issue No. 8]

The second cause of action for harassment based on physical disability in violation of FEHA against the City fails as a matter of law as Plaintiff cannot establish that any alleged harassment existed outside the scope of personnel management;

[Issue No. 9]

The second cause of action for harassment based on physical disability in violation of FEHA against Vo fails as a matter of law as Plaintiff cannot establish that any alleged harassment existed outside the scope of personnel management;

C.

Third

Cause of Action for Failure to Prevent Disability Discrimination

[Issue No.

10] The third cause of action for failure to prevent discrimination based on physical disability in violation of FEHA fails as a matter of law as Plaintiff cannot establish that he was subjected to any discrimination based on his alleged disability;

D.

Fourth

Cause of Action for Retaliation in Violation of FEHA

[Issue No.

11] The fourth cause of action for retaliation in violation of FEHA fails as a matter of law as Plaintiff cannot establish that he engaged in any protected activity;

[Issue No.

12] The fourth cause of action for retaliation in violation of FEHA fails as a matter of law as the City did not take any adverse employment actions against Plaintiff;

[Issue No.

13] The fourth cause of action for retaliation in violation of FEHA fails as a matter of law as the City had legitimate business reasons that were not pretextual for Plaintiff's alleged adverse employment actions;

E.

Fifth

Cause of Action for Failure to Accommodate Disability in Violation of FEHA

[Issue No. 14]

The fifth cause of action for failure to accommodate a disability in violation of FEHA fails as a matter of law as Plaintiff cannot establish that the City failed to offer a reasonable accommodation as a matter of law; and

F.

Sixth

Cause of Action for Failure to Engage in the Interactive Process in Violation of FEHA

[Issue No.

15] The sixth cause of action failure to engage in the interactive process in violation of FEHA fails as a matter of law as Plaintiff cannot establish that the City failed to engage in a good-faith interactive process with him as a matter of law.

G.

Evidentiary Objections

H.

Request for Judicial Notice

Defendants' Request for Judicial Notice is granted. Judicial notice may be taken of "[f]acts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy." (Evid.

Code, § 452, subd. (h).) However, “[t]aking judicial notice of a document is not the same as accepting the truth of its contents or accepting a particular interpretation of its meaning.” (Fremont Indemnity Co. v. Fremont Gen. Corp. (2007) 148 Cal.App.4th 97, 113 [internal quotes omitted]; see also Tenet Healthsystem Desert, Inc. v. Blue Cross of Calif. (2016) 245 Cal.App.4th 821, 836.)

I.

Issues Nos. 1-3

– Disability Discrimination (First Cause of Action)

A cause of action for discrimination based on disability requires a showing of the following elements: (1) plaintiff has a disability or medical condition or was regarded as suffering from a disability; (2) plaintiff could perform the essential duties of the job with or without reasonable accommodations; (3) plaintiff was subjected to defendant’s adverse employment decision; and (4) the adverse employment decision was because of plaintiff’s actual or perceived disability or medical condition. (Faust v. California Portland Cement Co. (2007) 150 Cal.App.4th 864, 886.)

Under the McDonnell Douglas process for allocating burdens of proof and producing evidence at trial, which is used in California for disparate-treatment cases under FEHA, the employee must first present a prima facie case of discrimination. (Moore v. Regents of the University of California (2016) 248 Cal.App.4th 216, 234, citing Guz v. Bechtel National Inc. (2000) 24 Cal.4th 317, 354; McDonnell Douglas Corp. v. Green (1973) 411 U.S. 792.) The burden then shifts to the employer to produce evidence of a nondiscriminatory reason for the adverse action. (Moore, 248 Cal.App.4th at 235, citing Guz, supra, 24 Cal.4th at 355-356.) At that point, the burden shifts back to the employee to show that the employer’s stated reason was in fact a pretext for a discriminatory act. (Ibid., citing Guz, supra, 24 Cal.4th at 356.)

However, the McDonnell Douglas framework is modified in a summary judgment motion for an employment discrimination case, wherein “the employer, as the moving party, has the initial burden to present admissible evidence showing either that one or more elements of plaintiff’s prima facie case is lacking or that the adverse employment action was based upon legitimate, nondiscriminatory factors.” (Serri v. Santa Clara University (2014) 226 Cal.App.4th 830, 861, quoting Hicks v. KNTV

Television, Inc. (2008) 160 Cal.App.4th 994, 1003.) "If the employer meets its initial burden, the burden shifts to the employee to 'demonstrate a triable issue by producing substantial evidence that the employer's stated reasons were untrue or pretextual, or that the employer acted with a discriminatory animus, such that a reasonable trier of fact could conclude that the employer engaged in intentional discrimination or other unlawful action.'" (Serri, supra, 226 Cal.App.4th at 861, quoting Cucuzza v. City of Santa Clara (2002) 104 Cal.App.4th 1031, 1038.)

Nevertheless, "[t]he three-stage framework and the many principles adopted to guide its application do not apply in discrimination cases where ... the plaintiff presents direct evidence of the employer's motivation for the adverse employment action." (Wallace v. County of Stanislaus (2016) 245 Cal.App.4th 109, 123.) "[D]isability discrimination cases often involve direct evidence of the role of the employee's actual or perceived disability in the employer's decision to implement an adverse employment action. Instead of litigating the employer's reasons for the action, the parties' disputes in disability cases focus on whether the employee was able to perform essential job functions, whether there were reasonable accommodations that would have allowed the employee to perform those functions, and whether a reasonable accommodation would have imposed an undue hardship on the employer." (Ibid.)

Defendants argue that Plaintiff cannot establish a claim for disability discrimination as the City did not discriminate against Plaintiff and Plaintiff was not subjected to an adverse employment action. (MSJ, at pp. 17-19.)

In support, Defendants provide that Plaintiff has been employed with the City as a police officer since 2007. (Undisputed Material Facts ("UMF"), No. 1.) On May 22, 2020, Plaintiff sustained injuries to his right shoulder during a use of force incident while on-duty. (Id., No. 2.) Subsequently, Plaintiff filed a Workers' Compensation Claim with the City for his shoulder injury and the City accepted such claim. (Id., Nos. 3-4.) Plaintiff worked with no restrictions as a police officer from the time of his shoulder injury to the time he underwent surgery on his shoulder in April 2021. (Id., No. 5.) From April 2021 to November 2021, Plaintiff was on medical leave until he returned to work in a light duty position in the Communications Department after Plaintiff stopped taking Meloxicam. (Id.,

No. 7.) During his medical leave, Plaintiff received full pay and benefits. (Id., No. 8.) In July 2021, Plaintiff received a letter from the City advising his doctor that the City has a light duty program and requesting that Plaintiff's doctor consider releasing Plaintiff to light duty. (Id., No. 11.) In early August 2021, Plaintiff also had two telephone conversations with Vo about Plaintiff's use of Meloxicam and returning to work light duty. (Id., No. 12.) Around March 2022, Plaintiff returned to work full duty as an officer. (Id., No. 14.) In May 2023, Plaintiff applied for and was assigned to the traffic division as a motor officer with a pay increase and worked full duty in this capacity until January 2024. (Id., No. 15.) On January 8, 2024, Plaintiff underwent a second surgery on his shoulder. (Id., No. 16.) Plaintiff was on medical leave from the time of his second surgery until returning to a light-duty position in the Communications Department in June 2024. (Id., No. 17.) During his medical leave, Plaintiff received full pay and benefits. (Id., No. 18.) Plaintiff worked light duty in the Communications Department from June 2024 to October/November 2024. (Id., No. 19.) In November 2024, Plaintiff returned to full duty and currently works as a motor officer for the City. (Id., No. 20.)

#### Defendants

contend that the evidence demonstrates that the City accommodated Plaintiff throughout his injury, surgeries, and recovery. (MSJ, at p. 17.) Defendants also contend that the evidence demonstrates that Plaintiff remains employed by the City and Plaintiff has not been terminated, demoted, or subjected to an adverse employment action under FEHA. (Id., at pp. 18-19.)

An adverse employment action must "materially affect the terms and conditions of employment."

(Yanowitz v. L'Oreal USA, Inc. (2005) 36 Cal.4th 1028, 1036.) "[I]n determining whether an

employee has been subjected to treatment that materially affects the terms and conditions of employment, it is appropriate to consider the totality of the circumstances and to apply the 'continuing violation' doctrine." (Ibid.)

"[T]he determination of what type of adverse treatment properly should be considered discrimination in the terms, conditions, or privileges of employment is not, by its nature, susceptible to a mathematically precise test, and the significance of particular types of adverse actions must be evaluated by taking into account the legitimate interests of both the employer and the employee. Minor or relatively trivial adverse actions or conduct by employers or fellow employees that, from an

objective perspective, are reasonably likely to do no more than anger or upset an employee cannot properly be viewed as materially affecting the terms, conditions, or privileges of employment and are not actionable, but adverse treatment that is reasonably likely to impair a reasonable employee's job performance or prospects for advancement or promotion falls within the reach of the antidiscrimination" laws. (Yanowitz, supra, 36 Cal.4th at 1054-1055.)

The court finds that Defendants met their initial burden of demonstrating that Plaintiff was not discriminated against based on his disability as Plaintiff was not subjected to an adverse employment action. Here, the City's conduct did not materially affect the terms and conditions of Plaintiff's employment in that Plaintiff was granted medical leave, received full pay and benefits during such periods, had the ability to return to work in both a light duty and full duty position, was subsequently promoted when Plaintiff applied, and Plaintiff remains employed by the city. (UMF, Nos. 1-20.) In other words, the City's conduct does not appear to have impaired Plaintiff's job performance or the prospect of a promotion. The burden shifts to Plaintiff to raise a triable issue of fact.

In opposition, Plaintiff contends that he was subjected to an adverse employment action as Defendants repeatedly sought to force Plaintiff to return to work by questioning, modifying, and working around the restrictions imposed on Plaintiff rather than accommodating the restrictions as first prescribed. (Opp., at p. 6.) In support, Plaintiff provides that, as part of their telephonic conversations, Vo questioned how Plaintiff could not report to work while taking Meloxicam, suggested alternatives such as changing the timing of the medication, having Plaintiff's wife drive him to work, or using public transportation, and communicated with Plaintiff's doctor regarding Plaintiff's work restrictions. (Id.; UMF, Nos. 11-13.) Plaintiff also provides that he was surveilled by private investigators following his initial surgery in April 2021. (Id., at p. 7; UMF, No. 9.)

The court finds that Plaintiff fails to raise a triable issue of fact as to whether he suffered an adverse employment action to support a claim for disability discrimination. Defendants' purported conduct, as Plaintiff described, does not constitute treatment that materially affects the terms and conditions of Plaintiff's employment. There is no indication that Vo's communications caused Plaintiff to return to work in a light duty position when Plaintiff was restricted from doing so. Plaintiff remained in medical

leave until he stopped taking Meloxicam and Plaintiff's doctor modified his return-to-work restrictions. (UMF, Nos. 7, 11, 13.)  
The

court must take into consideration the legitimate

interests of both the employer and the employee to determine whether there was a

materially adverse employment action. Defendants had a legitimate interest in

having Plaintiff return to work and sought to do so only at the discretion of

Plaintiff's doctor. Neither mere

oral or written criticism of an employee nor mere ostracism in the workplace

constitutes an adverse employment action. (Light v. Department of Parks

& Recreation (2017) 14 Cal.App.5th 75, 92.) Moreover, Plaintiff

concedes that surveillance is a common practice of the City to

surveil Workers' Compensation claimants and did not affect the terms and conditions of his employment. (UMF, No. 10.)

Accordingly, summary adjudication is granted as to the

first cause of action for disability discrimination.

J.

Issues Nos. 4-9

– Disability Harassment (Second Cause of Action)

Defendants

argue that Plaintiff's harassment claim is barred by the statute of limitations.

(MSJ, at p. 21.)

Prior

to January 1, 2020, FEHA "provided that no administrative complaint alleging a

violation of its provisions could be filed with the [Department of Fair

Employment and Housing ("DFEH"), currently known as the Civil Rights Department

("CRD")] after the expiration of one year from the date upon which the

alleged unlawful practice or refusal to cooperate occurred." (Pollock

v. Tri-Modal Distribution Services (2021) 11 Cal.5th 918,

931.) In

2020, the Legislature amended FEHA to extend an employee's period to file an

administrative complaint from one to three years. (Gov. Code, § 12960,

subd. (d); Stats. 2017, ch. 799, § 13; Gov. Code, § 12960, subd. (e); Stats.

2019, ch. 709, § 1.)

In support,

Defendants provide that Plaintiff filed his harassment claim with the CRD

against the City on August 22, 2024, and an amended CRD complaint against

Defendants on August 30, 2024. (UMF, Nos. 21-22.) Defendants contend that Plaintiff admitted that all alleged harassment by Defendants occurred prior to August 22, 2021, more than three years before the filing of his CRD complaints. (Id., No. 26.)

The court finds that Defendants met their initial burden of demonstrating that the disability harassment claim is barred by the statute of limitations. The burden shifts to Plaintiff.

In opposition, Plaintiff argues that the continuing violation doctrine tolls the statute of limitations as Defendants' surveillance extended into September 2021. (Opp., at pp. 13-14; UMF, No. 26.)

The continuing violation doctrine "allows liability for unlawful employer conduct occurring outside the statute of limitations if it is sufficiently connected to unlawful conduct within the limitations period." (Richards v. CH2M Hill, Inc., (2001) 26 Cal.4th 798, 802.) It applies "if (1) the actions are sufficiently similar in kind; (2) they occur with sufficient frequency; and (3) they have not acquired a degree of 'permanence' so that employees are on notice that further efforts at informal conciliation with the employer... would be futile." (Ibid.)

The court finds that Plaintiff failed to raise a triable issue of fact as to whether the continuing violation doctrine tolled the statute of limitations to file his CRD complaint. It is undisputed that Plaintiff was surveilled twice by private investigators following his initial surgery in August and September 2021. (UMF, No. 9.) Plaintiff alleges his harassment claim based on Defendants' communications regarding Plaintiff taking Meloxicam and return-to-work restrictions. (Opp., at p. 14.) The mere fact that Plaintiff was surveilled once again in September 2021 does not demonstrate that the alleged harassing conduct occurred with the sufficient frequency or was sufficiently similar in kind to Vo's alleged harassing communications.

However, even if Plaintiff sufficiently demonstrated that his disability harassment claim is not time barred, the court finds that Defendants met their initial burden to

demonstrate that the alleged harassing conduct is not sufficiently severe or pervasive.

“To prevail

on a harassment claim under FEHA, a plaintiff must produce evidence they were subjected to ‘offensive comments or other abusive conduct’ that is (1) based on a ‘protected characteristic’ and “(2) ‘sufficiently severe or pervasive as to alter the conditions of [his] employment.’ ” (Doe v. Department of Corrections & Rehabilitation (2019) 43 Cal.App.5th 721, 736.) “To constitute harassment, the conduct must be so objectively severe or pervasive as ‘to create a hostile or abusive working environment.’ ” [Citation.] Factors to consider in this context include the frequency of the conduct, its severity, whether it is physically threatening or humiliating, and whether it unreasonably interferes with the employee’s work performance.’ ” (Ibid.)

As

noted above, Plaintiff’s disability harassment claim is based on a July 2021 letter from the City advising Plaintiff’s doctor regarding the light duty program and requesting that the doctor consider releasing Plaintiff to light duty; two telephone conversations with Vo regarding Plaintiff’s use of Meloxicam and returning to light duty; and Plaintiff’s surveillance. (UMF, Nos. 9, 11, and 12.) Without more, the alleged conduct is not sufficiently frequent, severe, threatening, or humiliating nor does it unreasonably interfere with Plaintiff’s work performance. (Holmes v. Petrovich Development Co., LLC (2011) 191 Cal.App.4th 1047, 1061 [“T]here is no recovery for harassment that is occasional, isolated, sporadic, or trivial. [Citation.] Rather, a plaintiff must show a concerted pattern of harassment that is repeated, routine, or generalized in nature.” ].)

Accordingly, summary adjudication is granted as to the second cause of action for disability harassment.

K.

Issue No. 10 –

Failure to Prevent Disability Discrimination (Third Cause of Action

Defendants

argue that as Plaintiff cannot establish that he was subjected to disability discrimination or harassment, his claim for failure to prevent discrimination

or harassment also fails. (MSJ, at pp. 23-24.) The court agrees as demonstrated above.

Accordingly, summary adjudication is granted as to the third cause of action for failure to prevent disability discrimination and harassment.[1]

L.

Issues No. 11-13 – Retaliation (Fourth Cause of Action)

“[I]n order to establish a prima facie case of retaliation under [FEHA], a plaintiff must show (1) he or she engaged in a “protected activity,” (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer’s action. [Citations.] Once an employee establishes a prima facie case, the employer is required to offer a legitimate, nonretaliatory reason for the adverse employment action. [Citation.] If the employer produces a legitimate reason for the adverse employment action, the presumption of retaliation ‘drops out of the picture,’ and the burden shifts back to the employee to prove intentional retaliation.” (Yanowitz, supra, 36 Cal.4th at 1042.)

Defendants

argue that Plaintiff cannot demonstrate that he suffered an adverse employment action for engaging in any protected activity. (MSJ, at pp. 24-25.)

The court finds that Defendants met their initial burden of demonstrating that Plaintiff did not suffer an adverse employment action. The complaint alleges that “Plaintiff protested [the] City’s attempts to unlawfully force him to return to a light duty position and return to full duty as a police officer” and the “City unlawfully retaliated against Plaintiff by, among other things, harassing Plaintiff” as a basis for the retaliation claim. (Complaint, ¶ 51.) Although unclear, the court construes such allegations to refer to Plaintiff’s filing of a CRD complaint. However, it is undisputed that Defendants’ purported harassing conduct occurred prior to the filing of the CRD complaint. (UMF, Nos. 9, 11, 12, 21, and 26.) Moreover, as noted above, the alleged conduct was also not sufficiently severe or pervasive to constitute harassment and cannot establish an adverse employment action. The burden shifts to Plaintiff.

In

opposition, Plaintiff does not provide any additional evidence or argument to demonstrate that he was subjected to any adverse employment action after engaging in any alleged protected activity. (Opp., at pp. 19-20.)

Accordingly, summary adjudication is granted as to the fourth cause of action for retaliation.

M.

Issue No. 14

– Failure to Accommodate Disability in Violation of FEHA (Fifth Cause of Action)

Government Code section

12940(m)(1) provides that it is unlawful “[f]or an employer or other entity covered by this part to fail to make reasonable accommodation for the known physical or mental disability of an applicant or employee.” (Gov. Code §12940(m)(1).)¿

To prevail on a cause of action for failure to accommodate, the plaintiff must prove that (1) the plaintiff had a disability; (2) the plaintiff is a qualified individual and that he can perform the essential functions of the position; and (3) the employer failed to reasonably accommodate the plaintiff’s disability. (Hernandez v. Rancho Santiago (2018) 22, Cal.App.5th 1187, 1193-94.) Moreover, failure to accommodate claims are not subject to the McDonnell Douglas burden shifting framework. (Cornell v. Berkeley Tennis Club (2017) 18 Cal.App.5th 908, 926.)

Defendants argue that the undisputed facts demonstrate that the City provided plaintiff with accommodations for his disability including granting medical leave and placing Plaintiff in light duty positions until he was able to return to full duty. (MSJ, at pp. 25-26; UMF, Nos. 7-8 and 17-19.)

The court finds that Defendants met their initial burden demonstrating that the City granted Plaintiff with reasonable accommodations. The burden shift to Plaintiff.

In opposition, Plaintiff argues that it is disputed whether such accommodations were reasonable as Defendants repeatedly questioned

Plaintiff's restrictions, sought revisions to those restrictions, and discussed alternatives. (Opp., at pp. 20-21.)

The court finds that Plaintiff fails to raise a triable issue of fact as to whether the City granted Plaintiff with reasonable accommodations. There is no indication that Defendants did not follow Plaintiff's doctors return-to-work restrictions or forced Plaintiff to return to work before being allowed to do so at his doctor's discretion.

Accordingly, summary adjudication is granted as to the fifth cause of action for failure to accommodate.

N.

Issue No. 15

– Failure to Engage in the Interactive Process in Violation of FEHA (Sixth Cause of Action)

Government Code

§12940(n) provides that it is unlawful “[f]or an employer or other entity covered by this part to fail to engage in a timely, good faith, interactive process with the employee or applicant to determine effective reasonable accommodations, if any, in response to a request for reasonable accommodation by an employee or applicant with a known physical or mental disability or known medical condition.” (Gov. Code §12940(n).) “The interactive process required by [section 1240(n)] is an informal process with the employee or the employee's representative, to attempt to identify a reasonable accommodation that will enable the employee to perform the job effectively. Ritualized discussions are not necessarily required.” (Wilson v. County of Orange, 169 Cal.App.4th 1185, 1195 [citation omitted].)

Defendants

argue that the undisputed facts show that the city complied with all of Plaintiff's requested accommodations and engaged in the interactive process including communicating with Plaintiff and his doctor regarding his physical limitations, accommodated Plaintiff's need for two surgeries through medical leaves and light duty positions, and allowed Plaintiff to return to full duty when able. (MSJ, at pp. 26-28; UMF, Nos. 7-8 and 17-20.)

The

court finds that Defendants met their burden of showing that they engaged in the interactive process with Plaintiff. The burden shifts to Plaintiff.

In opposition, Plaintiff argues that a dispute remains as to whether Defendants' communication were undertaken in good faith to engage in the interactive process. (Opp., at p. 21.)

The court finds that Plaintiff failed to raise a triable issue for the same reasons discussed in the fifth cause of action. Plaintiff was granted accommodations due to his disability and Defendants engaged in communications regarding such accommodations. There is no indication that the accommodations provided were unreasonable.

Accordingly, summary adjudication is granted as to the sixth cause of action for failure to engage in the interactive process.

#### IV. CONCLUSION

Defendants  
City of Torrance and Courtney Vo's Motion for Summary Judgment is GRANTED.

[1]  
As Defendants note, Plaintiff titled his third cause of action as failure to prevent disability discrimination but includes allegations regarding Defendants' purported failure to prevent disability harassment. (Complaint, ¶¶ 44-45.)